

		high-ranking corporate executive is sufficiently extreme and outrageous at the pleading stage. “A cause of action for IIED requires proof of: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff suffered severe emotional distress; and (3) the defendant's extreme and outrageous conduct was the actual and proximate cause of the severe emotional distress.” (<i>Crouch v. Trinity Christian Center of Santa Ana, Inc.</i> (2019) 39 Cal.App.5th 995, 1007.) At the pleading stage, the fact alleged in the fact could demonstrate extreme and outrageous conduct by Defendants. therefore, the demurrer is overruled as to this claim. Plaintiff may amend her second cause of action against Defendant Kruse and her ninth cause of action against Defendant iHerb. Plaintiff is not permitted to further amend her complaint to allege additional claims without leave of court.
10.	CLAY MONAGHAN VS. TIK-TOK INC. 2024-01400215	MOTION TO SEAL Defendant Keith Vermeeren’s Motion to Seal is GRANTED. “The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. Substantive courtroom proceedings in ordinary civil cases, and the transcripts and records pertaining to these proceedings, are presumptively open.” (<i>McNair v. National Collegiate Athletic Assn.</i> (2015) 234 Cal.App.4th 25, 31 (cleaned up); see <i>In re Marriage of Nicholas</i> (2010) 186 Cal.App.4th 1566, 1575 [strong presumption of public access to court records].) California Rules of Court, Rule 2.551(b)(1) states that: “A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing.” California Rules of Court, Rule 2.550(d) states the following: “The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest.”

Here, Defendant seeks to seal the unredacted name of the minor K.V. that appears in the September 28, 2025 deposition transcript of Defendant's ex-wife, Lindsay Vermeeren. Excerpts of the transcript are attached as Exhibit 6 to the Compendium of Exhibits in support of Defendant's Motion for Summary Judgment or Adjudication.

Specifically, Defendant filed the redacted version, which redacts K.V.'s first name from five separate pages of Lindsay Vermeeren's testimony at pg. 5:16; pg. 12:17, 18, 20, 22; pg. 15:3, 5, 18, 22; pg. 54:4, 7, 18, 21, 24; and pg. 55:2, 5, 8, 13, 17. (Kim Decl., ¶¶ 5, 6; see also ROA 218.) This is the only material redacted from any of the exhibits to the Compendium. (Kim Decl., ¶¶ 5, 7.) Defendant also filed the unredacted version of the transcript conditionally under seal. (ROA 221.)

Defendant's MSJ was heard and granted on 4/14/26. (See ROA 264.) K.V.'s date of birth is August 10, 2008. (Kim Decl., ¶ 9.) Therefore, K.V. was a minor when the motion was heard. California protects the identities of minors who are parties or implicated in court actions. (See, e.g. Code of Civ. Proc. § 372.5 [allowing a guardian ad litem appointed to represent a minor to appear under a pseudonym]; see also *In re Edward S.* (2009) 173 Cal.App.4th 387, 392, fn. 1 [recognizing that "to protect the privacy of minors involved in delinquency, dependency, and family law cases, many courts of appeal have recently adopted the practice of identifying such minors only by their initials, in accordance with an "informal recommendation of the Reporter of Decisions."]; *Adoption of O.M.* (2008) 169 Cal.App.4th 672, 675, fn. 1 ["In order to protect the privacy of the minor (see Cal. Style Manual (4th ed.2000), §§ 5:9, 5:10), and in accordance with the informal recommendation of the Reporter of Decisions, we refer to the parties and other persons mentioned in our opinion only by their initials."])

The motion is unopposed.

The motion is granted. Moving Defendant has shown the proposed redactions are narrowly tailored to protect an overriding interest of protecting the identity of a minor, which interest would be harmful if the motion was denied.